

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
JAMESON LIBHART and MARY GORMAN,

Plaintiffs,

-against-

Index No:

Date Purchased:

Plaintiffs designate
New York County
as the place of trialTHE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, P.O. MARK DUMELLE, SHIELD NO.
18610, OF THE 9TH PCT, P.O. MICHAEL DELWY, SHIELD
NO. 23949, OF THE 9TH PCT., P.O. "JOHN DOE" #1 and
P.O. "JOHN DOE" 2 (the names herein to be fictitious as
they are currently unknown),**SUMMONS**The basis of the venue is locus
of occurrence:
County of New YorkDefendants
-----X

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
May 2, 2019GERSOWITZ LIBO & KOREK, P.C.
Attorneys for PlaintiffsBy: Michael A. Fröhling
111 Broadway, 12th Floor
New York, New York 10006
(212) 385-4410

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
JAMESON LIBHART and MARY GORMAN

Plaintiffs,

Index No.:

-against-

COMPLAINT

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, P.O. MARK DUMELLE, SHIELD
NO.18610, OF THE 9TH PCT, P.O. MICHAEL DELWY,
SHIELD NO. 23949, OF THE 9TH PCT, P.O. "JOHN DOE"
#1 and P.O. "JOHN DOE" #2, (the names herein to be
fictitious as they are currently unknown),

Defendants
-----X

JAMESON LIBHART and MARY GORMAN., by their attorneys GERSOWITZ, LIBO &
KOREK, P.C., as for their Verified Complaint, alleges the following, upon information and belief:

I. PRELIMINARY STATEMENT

1. This is an action brought under 42 U.S.C. §§ 1981, 1983 and 1985, regarding the
actions of the Defendants.

2. Due to the defendants' actions and deliberate inactions, plaintiff was caused to suffer
severe and debilitating physical, emotional, and psychological injuries, and was deprived of rights
afforded to her by the constitution and laws of both the United States and the State of New York.

3. Plaintiff now seeks damages for the substantial pain and suffering, assault and battery,
deprivation of his civil rights, emotional distress, and humiliation.

II. VENUE

4. Venue is laid pursuant to where the incident occurred, 107 East 10th Street, County,
City and State of New York, where a substantial part of the acts and omissions giving rise to these
causes of action occurred, to wit, in the County of New York.

III. PARTIES

5. Plaintiff JAMESON LIBHART, was at all times relevant to this complaint a citizen of the United States and was a resident of the County, City of New York in the State of New York.

6. Defendant CITY OF NEW YORK is a municipal corporation, and political subdivision, of the State of New York, organized and existing through the Constitution and laws of the State of New York.

7. The New York City Police Department was established and exists through the authority of Chapter 18 of the New York City Charter, and pursuant to said Charter and laws enacted there under, defendant CITY owns, operates, manages, directs, and controls the New York City Police Department, which also employs all JOHN DOE POLICE OFFICERS involved in this case as well as all named Defendant POLICE OFFICERS, to wit: MICHAEL DELWY, SHIELD NUMBER 23949, of the 9TH PCT and MARK DUMELLE, SHIELD NUMBER 18610, of the 9TH PCT.

8. POLICE OFFICER MICHAEL DELWY , SHIELD NUMBER 23949, of the 9TH PCT, is and was at all times relevant to this Complaint an employee of defendant CITY, duly appointed and acting as a POLICE OFFICER with the aforementioned New York City Police Department. She is sued in her individual capacity.

9. POLICE OFFICER MARK DUMELLE, SHIELD NUMBER 18610, of the 9TH PCT, is and was at all times relevant to this Complaint an employee of defendant CITY, duly appointed and acting as a POLICE OFFICER with the aforementioned New York City Police Department. He is sued in his individual capacity.

10. JOHN DOE NEW YORK CITY POLICE OFFICER NUMBER ONE is and was at all times relevant to this Complaint an employee of defendant CITY, duly appointed and acting as

a POLICE OFFICER with the aforementioned New York City Police Department. He is sued in his individual capacity.

11. JOHN DOE NEW YORK POLICE OFFICER NUMBER TWO is and was at all times relevant to this Complaint an employee of defendant CITY, duly appointed and acting as a POLICE OFFICER with the aforementioned New York City Police Department. He is sued in his individual capacity.

12. At all times relevant to this Complaint, all Defendants acted in concert and conspired together through both their acts and omissions and are jointly and severally liable for the harms caused to plaintiff.

13. At all times relevant to this Complaint, all defendants were acting under the color of state law, to wit, the statutes, ordinances, regulations, policies, customs, and usages of defendant CITY and of the State of York

IV. NOTICE OF CLAIM

14. A notice of claim is not required regarding Plaintiff's Federal claims under 42 U.S.C. §§ 1981, 1983 and 1985.

V. FACTUAL ALLEGATIONS

15. On May 18, 2016, at or about 12:00 a.m., Plaintiff was walking into his apartment building located at 107 East 10th Street, #3D, in the County, City and State of New York.

16. As plaintiff was walking into his building, he was grabbed from behind and maced by police officers who were not uniform, and who failed to identify themselves.

17. Plaintiff was initially detained because the Defendant Police Officers thought they saw Plaintiff discard a marijuana cigarette.

18. Plaintiff was thereafter assaulted by POLICE OFFICER DELWY and POLICE OFFICER DUMELLE.

19. While plaintiff was lying on the ground and handcuffed, POLICE OFFICER DELWY repeatedly punched the plaintiff.

20. While plaintiff was lying on the ground, and handcuffed POLICE OFFICER DUMELLE repeatedly punched the plaintiff.

21. There was nothing the plaintiff could do to ward off the blows coming from POLICE OFFICER DELWY and POLICE OFFICER DUMELLE.

22. At no time did POLICE OFFICER DUMELLE, or any other POLICE OFFICER, all of whom were physically and actually present and able to observe said actions, do anything to stop or intervene POLICE OFFICER DELWY from assaulting and battering the plaintiff.

23. At no time did POLICE OFFICER DELWY, or any other POLICE OFFICER, all of whom were physically and actually present and able to observe said actions, do anything to stop or intervene POLICE OFFICER DUMELLE from assaulting and battering the plaintiff.

24. Plaintiff was handcuffed and taken to the 9th Precinct.

25. Plaintiff was placed under arrest and charged with Assault in the Second Degree, specifically with an alleged assault upon POLICE OFFICER DELWY

26. As a direct and proximate result of the acts and omissions of defendants, plaintiff sustained severe and permanent injuries including, but not limited to, the following:

- a. Traumatic Brain Injury
- b. Concussion
- c. Post-traumatic distress disorder
- d. Anxiety disorder
- e. bruising and swelling about the face and body
- f. speech disorder
- g. movement disorder

- h. emotional distress and severe emotional distress
- i. mental anguish, requiring continued psychological treatment.

27. The actions and omissions of defendants violated the following clearly established and well settled federal rights of plaintiff's under the Fourth and Fourteenth Amendments to the United States Constitution:

- a. freedom from unreasonable seizure of person
- b. freedom from the use of excessive force
- c. freedom from unreasonable force
- d. freedom from unjustified force

COUNT ONE

Federal cause of action pursuant to 42 U.S.C. § 1981, 1983, 1985 against the individual defendants for violation of plaintiff's Fourth and Fourteenth Amendment rights)

28. Paragraphs 1 through 27 are each repeated, realleged, and reiterated as if fully set forth herein and are incorporated by reference.

29. The actions of all named defendants violated plaintiff's rights under the Fourth and Fourteenth Amendments to the United States Constitution to be free from the use of excessive and unreasonable force, unreasonable seizure, and the application of force, applied in a bad faith, maliciously, and sadistically for the sole purpose of causing harm.

30. As a direct and proximate result thereof, plaintiff claims damages for the injuries set forth above.

COUNT TWO

Federal cause of action pursuant to 42 U.S.C. § 1981, 1983, 1985, and Monell v Dept. Of Soc. Serv., 436 U.S. 658 (1978) against the municipal defendant

31. Paragraphs 1 through 29 are each repeated, realleged, and reiterated as if fully set forth herein and are incorporated by reference.

32. Defendant CITY knew or should have known of the propensity of its employees, agents, or servants, to engage in illegal and wrongful acts detailed above.

33. Prior to August 30, 2014, Defendant CITY and NEW YORK CITY POLICE DEPARTMENT developed and maintained policies and/or customs exhibiting deliberate indifference to the constitutional rights of persons incarcerated in the custody of the New York City Police Department, which policies and/or customs caused the violation of plaintiff's rights.

34. Prior to May 18, 2016, Defendant CITY and NEW YORK CITY POLICE DEPARTMENT developed and maintained policies and/or customs which prohibited police officers from arresting and/or detaining citizens for minor infractions, such as the use of marijuana.

35. Based upon information and belief, it was the policy and/or custom of defendant CITY and the NEW YORK CITY POLICE DEPARTMENT to improperly or inadequately investigate complaints of people in the custody of the NEW YORK CITY POLICE DEPARTMENT, and acts of abuse, excessive force, and misconduct were instead tolerated, encouraged, and ratified by defendant CITY and the NEW YORK CITY POLICE DEPARTMENT, including incidents in the past where officials from the New York City Police Department beat individuals in police custody in violation of state and federal law; retaliated against persons in police custody for exercising their right to be free from excessive force of the use of force and otherwise obstructed and manipulated any investigations thereto.

36. These customs and policies regarding the use of such force were, indeed, pervasive and well known around Defendants. CITY and NEW YORK POLICE DEPARTMENT.

37. As a result of the above described policies and/or customs, officers of defendant CITY believed that their actions would not be properly monitored by supervisory officers and that

misconduct would not be investigated or sanctioned, but, instead, would be tolerated and even encouraged.

38. The above policies and/or customs demonstrated a deliberate indifference on the part of policymakers of defendant CITY to the constitutional rights of persons within CITY who were detained or in the custody of the New York City Police Department, and were the cause of violations of plaintiff's rights alleged herein.

39. As a result of the wrongful, deliberately indifferent and illegal acts of defendants CITY and NEW YORK CITY POLICE DEPARTMENT, plaintiff claims damages against defendant CITY for the injuries set forth above.

COUNT THREE

Cause of action against the municipal defendant under the doctrine of *Respondeat Superior*, P.O. MARK DUMELLE, SHIELD NO. 18610 OF THE 9TH PCT; P.O. MICHAEL DELWY, SHIELD NO. 23949 OF THE 9TH PCT; P.O. "JOHN DOE" #1 AND P.O. "JOHN DOE" #2

40. Paragraphs 1 through 39 are each repeated, realleged, and reiterated as if fully set forth herein and are incorporated by reference.

41. Defendant CITY and THE NEW YORK CITY POLICE DEPARTMENT are liable for all injuries sustained by plaintiff as alleged in this complaint starting on or about May 18, 2016, and continuing thereafter, as a result of the conduct of its agents, servants, and employees, under the doctrine of respondeat superior.

42. Defendant CITY and THE NEW YORK CITY POLICE DEPARTMENT, by its agents, servants, and employees, committed the torts of intentional infliction of emotional distress, assault and battery.

43. As a direct and proximate result thereof, plaintiff claims damages for the injuries set forth above.

COUNT FOUR

44. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs "1" through "43," inclusive, as though each were set forth fully at length herein

45. Defendants' conduct towards Plaintiff, was so outrageous and shocking that it exceeded all reasonable bounds of decency tolerated by the average member of the community.

46. Defendants' acted with the desire to cause Plaintiff JAMESON LIBHART, mental distress and physical distress and pain or acted under circumstances known to them which made it substantially certain that they would cause such mental and physical distress.

47. Defendants acted with utter and reckless disregard of the consequences of their actions.

48. As a result of the foregoing, Plaintiff JAMESON LIBHART, has sustained severe and debilitating physical, emotional, and psychological distress, anguish, anxiety, fear, humiliation, and soreness.

49. As a result of the foregoing, Plaintiff JAMESON LIBHART, demands judgment against defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

COUNT FIVE
Loss of Consortium

50. Plaintiffs repeat, reiterate and reallege each and every allegation contained in the above Causes of Action with the same force and effect as though fully set forth herein at length

51. That at all times hereinafter mentioned, Plaintiff JAMESON LIBHART was and still is the husband of Plaintiff MARY GORMAN

52. That at all times hereinafter mentioned, Plaintiff JAMESON LIBHART resided with his wife, Plaintiff MARY GORMAN.

53. As such, Plaintiff MARY GORMAN was and is entitled to the love, support, services, society and consortium of her husband, Plaintiff JAMESON LIBHART.

54. That solely by reason of the acts complained of herein, Plaintiff MARY GORMAN was deprived of the love, services, support, society and consortium of her husband, Plaintiff JAMESON LIBHART.

55. That solely by reason of the foregoing, Plaintiff MARY GORMAN has been damaged in an amount which exceeds the jurisdictional limits of all lower Courts resulting from the acts alleged in the above Causes of Action.

VI. THE ITEMS OF DAMAGE OR INJURIES CLAIMED

56. That by reason of the foregoing, Plaintiff JAMESON LIBHART, was severely injured and damaged, sustained personal injuries, bruises, contusions, trauma, mental distress and other injuries;. Plaintiff was rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience, and other effects of such injuries, and Plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to plaintiff's great damage.

57. Plaintiff JAMESON LIBHART suffered a deprivation of his liberty, the use of excessive and unnecessary force was used against him, beaten, battered, assaulted, humiliated,

embarrassed, suffered emotional harm, shock, loss of reputation in the community, loss of self-esteem, fear and anxiety as a result of this incident.

58. Plaintiff was deprived of his freedom.

59. Plaintiff JAMESON LIBHART, was caused to be injured, and to undergo pain and suffering as a result of the aforementioned willful, wanton and deliberate indifference on the part of defendants.

60. As a result of the aforesaid, Plaintiff JAMESON LIBHART, was damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction

WHEREFORE, Plaintiffs, respectfully demands judgment against defendants, CITY OF NEW YORK, POLICE OFFICERS MICHAEL DELWY, SHIELD NUMBER 23949 of the 9TH PCT and MARK DUMELLE, SHIELD NUMBER 18610, and request the following relief: compensatory and punitive damages in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction; an award of reasonable attorney's fee, costs and disbursements of this action; such other and further relief as this Court may deem just, fair and proper under the circumstances.

Dated: New York, New York
May 2, 2019

Yours, etc.

ERSOWITZ LIBO & KOREK, P.C.
Attorneys for Plaintiffs

Michael A. Frubling
111 Broadway, 12th Floor
New York, New York 10006
(212) 385-4410

STATE OF NEW YORK)
) ss:
COUNTY OF NEW YORK)

MICHAEL A. FRUHLING, being duly sworn, deposes and says:

That he is an attorney with the attorneys for the Plaintiffs herein.

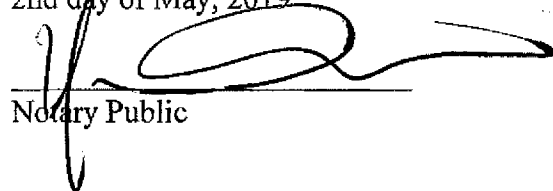
That he has read the foregoing COMPLAINT, and knows the contents thereof.

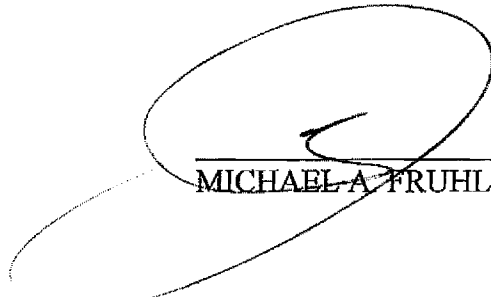
That the same is true to his own knowledge except as to the matters therein stated to be alleged upon information and belief, and as to those matters he believes it to be true.

Deponent further says that the source of his information and the grounds of his belief as to all the matters herein not stated upon his knowledge are: Correspondence had with the said Plaintiff and reports of investigation caused to be made by the Plaintiffs which are now in deponent's possession and other pertinent data relating thereto.

Deponent further says that the reason why this verification is made by deponent and not by the said Plaintiffs is that the said Plaintiffs do not reside in the County of New York, the County wherein deponent has his office.

Sworn to before me this
2nd day of May, 2019


Notary Public


MICHAEL A. FRUHLING

YOLANDA MORALES
Notary Public, State of New York
No. 01M05053947
Qualified in New York County
Commission Expires January 2, 2022

Index No.
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Year 20

JAMESON LIBHART and MARY GORMAN,

Plaintiffs,

-against-

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DEPARTMENT, P.O. MARK DUMELLE, SHIELD NO.
18610 OF THE 9TH PCT., P.O. MICHAEL DELWY, SHIELD
NO. 23949 OF THE 9TH PCT., P.O. "JOHN DOE", #1 and
P.O. "JOHN DOE" 2 (the names herein to be fictitious as
they are currently unknown),

Defendants.

SUMMONS and VERIFIED COMPLAINT

GERSOWITZ LIBO & KOREK, P.C.

Attorneys for Plaintiffs

Office and Post Office Address-Telephone

111 BROADWAY - 12TH FLOOR

NEW YORK, N.Y. 10006

(212) 385-4410

To

Attorney(s) for

Service of a copy of the within

is hereby admitted.

Dated,

Attorney(s) for

NOTICE OF ENTRY

Sir: Please take notice that the within is a (*certified*) true
copy of a
duly entered in the office of the clerk of the within named
court on 20

Dated,

Yours, etc.,

GERSOWITZ LIBO & KOREK, P.C.

Attorneys for

Office and Post Office Address
111 BROADWAY - 12TH FLOOR
NEW YORK, N.Y. 10006

NOTICE OF SETTLEMENT

Sir: Please take notice that an order

of which the within is a true copy will be presented for
settlement to the Hon.

one of the judges of the within named Court, at

on

at

Dated,

M.

20

Yours, etc.,

GERSOWITZ LIBO & KOREK, P.C.

Attorneys for

Office and Post Office Address